

Ashish Gupta v. State of U.P. (Clause 6.8(b) notice without hearing date)

High Court of Judicature at Allahabad · Division Bench · 19 May 2017 · Writ-C No. 19698 of 2017 · WRIT - C No. 19698 of 2017 · **Writ allowed. Provisional assessment notice dated 08.09.2014 and recovery citation dated 03.08.2016 quashed; fresh provisional assessment directed.**

HEADNOTE

Division Bench allowed the writ and quashed a provisional assessment notice and the later recovery citation because the notice neither specified a date for hearing, as Clause 6.8(b) of the U.P. Electricity Supply Code, 2005 requires, nor disclosed the basis of the Rs.6,64,065 assessment. The consumer was held not to have been afforded the opportunity contemplated by para 6.8(b). Respondents were directed to issue a fresh provisional assessment and to pass a reasoned final order after considering objections, following *Ashok Kumar v. State of U.P.*, 2008 (6) ADJ 660 (DB).

FACTUAL SUMMARY

Ashish Gupta challenged a provisional assessment notice dated 8 September 2014 assessing Rs.6,64,065 and a recovery citation dated 3 August 2016. Licensee counsel produced instructions that the notice had been sent by ordinary post. The petitioner said he never received it, could not reply, and the assessment was treated as final. He argued that Clause 6.8(b)(1) of the U.P. Electricity Supply Code, 2005 required the notice itself to fix a date for hearing.

REUSABLE CONSTRUCTIONS

1. Under Clause 6.8(b) of the U.P. Electricity Supply Code, 2005, a provisional assessment notice must itself specify a date for hearing; a notice that does not is not in accordance with law and does not afford the consumer adequate opportunity. ¶ 3-4,6-7
2. A provisional assessment notice must disclose the basis on which the consumer is assessed to a stated sum; a notice silent on that basis is defective. ¶ 6
3. Where the provisional assessment notice is itself illegal, the notice and the consequent recovery citation are liable to be quashed, with a direction to issue a fresh provisional assessment and to pass a reasoned final order after considering objections. ¶ 7-8

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8(b)

provisional assessment notice — hearing date and basis of assessment

HOLDING

A provisional assessment notice that neither specifies a date for hearing as required by Clause 6.8(b) of the U.P. Electricity Supply Code, 2005, nor discloses the basis of the assessed amount, is not in accordance with law and does not afford the consumer adequate opportunity under para 6.8(b). The notice dated 08.09.2014 and recovery citation dated 03.08.2016 are quashed; the licensee must prepare and serve a fresh provisional assessment and make the final assessment after considering the consumer's objections, with reasons, in the light of *Ashok Kumar v. State of U.P.*, 2008 (6) ADJ 660 (DB). ¶ 3-8

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER IN FACT RECEIVED THE 08.09.2014 NOTICE SENT BY ORDINARY POST

The Court did not determine service; it quashed the notice as defective on its face (no hearing date; no basis of assessment). ¶ 2-4

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
Ashok Kumar v. State of U.P. 2008 (6) ADJ 660 (DB)			5	Referred

SCJ-1603 · Ashish Gupta v. State of U.P. (Clause 6.8(b) notice without hearing date) · Writ-C No. 19698 of 2017 · Supply Code Jurisprudence
A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.